

Court No. - 39

Case :- WRIT - C No. - 35021 of 2018

Petitioner :- Mool Chand @ Mantri

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mahesh Chandra Tiwari, Kiran Tiwari

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

As requested by Ms. Maimuna Fatima holding brief of Sri Mahboob Ahmad, learned counsel for the respondents, put up tomorrow, i.e. on 24.10.2018, as fresh.

Sri Mahesh Chandra Tiwari, learned counsel for the petitioner is present.

Order Date :- 23.10.2018

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Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Heard Sri Mahesh Chandra Tiwari, learned counsel for the petitioner, Sri Gaurav Singh, holding brief of Sri Mahboob Ahmad, learned counsel for respondent no. 4 and learned Standing Counsel for respondents no. 1, 2 & 3.

The petitioner in the writ petition is seeking quashing of the recovery certificate dated 20.9.2018 whereby a sum of Rs. 2,00,025/- with interest has been demanded from the petitioner towards recovery charges.

The contention of the petitioner is that there are no electricity dues against him and on 3.2.2018, 3 KW electricity supply load was sanctioned in his favour and he was also paying regular electricity bills.

In our opinion if recovery is sought from the petitioner, it is open to him to file his objection before respondent no. 4 - Executive Engineer, Purvanchal Power Distribution Nigam Ltd. as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

The admitted position as of today is that the petitioner has not even approached the Executive Engineer, respondent no. 4, therefore, we do not find any good ground for interference.

The writ petition is accordingly **dismissed**, leaving it open to the petitioner to file his objection before the competent authority.

Order Date :- 24.10.2018

Vandana